

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Taylor Jackson	Team: Squad #06	CCRB Case #: 202311243	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 11/29/2023 12:15 PM, Wednesday, 11/29/2023 12:32 PM	Location of Incident: Southeast corner of Delancey Street and Essex Street, Delancey St and Eldridge St.	18 Mo. SOL 5/29/2025	Precinct: 07
Date/Time CV Reported Thu, 11/30/2023 2:19 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 11/30/2023 2:19 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Roger Ordonez	01655	956140	007 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Adrian Garcia	17294	969713	007 PCT
2. PO Alfredo Salazar	02232	954310	007 PCT
3. PO Minqin Pan	03510	940908	007 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Roger Ordonez	Abuse: At Delancey Street and Eldridge Street in Manhattan, Sergeant Roger Ordonez refused to provide his name to § 87(2)(b)	A . Unable to Determine
B . SGT Roger Ordonez	Abuse: At Delancey Street and Eldridge Street in Manhattan, Sergeant Roger Ordonez refused to provide his shield number to § 87(2)(b)	B . Unable to Determine
C . SGT Roger Ordonez	Abuse: At Delancey Street and Essex Street in Manhattan, Sergeant Roger Ordonez refused to provide his name to § 87(2)(b)	C . Unable to Determine
D . SGT Roger Ordonez	Abuse: At Delancey Street and Essex Street in Manhattan, Sergeant Roger Ordonez refused to provide his shield number to § 87(2)(b)	D . Unable to Determine
E . SGT Roger Ordonez	Abuse: At Delancey Street and Essex Street in Manhattan, Sergeant Roger Ordonez searched the vehicle in which § 87(2)(b) was an occupant.	E . Within NYPD Guidelines
F . SGT Roger Ordonez	Force: At Delancey Street and Essex Street in Manhattan, Sergeant Roger Ordonez used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . SGT Roger Ordonez	Abuse: At Delancey Street and Essex Street in Manhattan, Sergeant Roger Ordonez arrested § 87(2)(b) unlawfully.	G . Substantiated

Case Summary

On November 30, 2023, § 87(2)(b) filed this complaint through the CCRB website.

On November 29, 2023, at approximately 12:32 p.m., § 87(2)(b) drove toward the Williamsburg Bridge in Manhattan while on Delancey Street. She noticed officers in a marked NYPD vehicle with turret lights flashing alongside her vehicle. She asked if she was being pulled over, and the operator, Sgt. Roger Ordonez of the 7th Precinct, responded she was not. She asked for his name and badge number, he allegedly only responded, “sergeant,” before he drove off.

(Allegation A and B: Abuse of Authority: Unable to Determine). § 87(2)(b) continued driving towards Delancey Street and Essex Street in Manhattan when she heard the passenger in the NYPD vehicle, PO Adrian Garcia, over the loudspeaker order her to pull over, and she complied. Additional officers responded and Sgt. Ordonez approached her vehicle and asked for her documentation. § 87(2)(b) instead asked for Sgt. Ordonez’s name and shield number, which he did not provide. **(Allegation C and Allegation D: Abuse of Authority: Unable to Determine).** Sgt. Ordonez reached into the window, unlocked the door, and pulled her out of the vehicle **(Allegation E: Abuse of Authority: Within NYPD Guidelines and Allegation F: Force: Within NYPD Guidelines).** § 87(2)(b) was then handcuffed, arrested, and transported to the 44th Precinct stationhouse **(Allegation G: Abuse of Authority, Substantiated).**

§ 87(2)(b) was released with the Desk Appearance Ticket for Obstruction of Governmental Administration.

On December 4, 2023, § 87(2)(b) provided two videos of the incident, which are located in IAs 13 and 14 (BR 1 and BR 2). Body-Worn Camera (BWC) footage was received from NYPD legal and is located in (BR 3, 4, and 5). Sgt. Ordonez and PO Garcia both did not have BWC footage as they did not have their BWC equipped due to being on an administrative assignment.

Findings and Recommendations

Allegation (A) Abuse of Authority: At Delancey Street and Eldridge Street in Manhattan, Sergeant Roger Ordonez refused to provide his name to § 87(2)(b)

Allegation (B) Abuse of Authority: At Delancey Street and Eldridge Street in Manhattan, Sergeant Roger Ordonez refused to provide his shield number to § 87(2)(b)

There was no BWC footage that captured these allegations as neither Sgt. Ordonez nor PO Garcia were equipped with BWCs due to their administrative assignments.

§ 87(2)(b) testified that on November 29, 2023, at approximately 12:30 p.m., she was driving down Delancey Street in Manhattan when she noticed a marked NYPD vehicle on the right side of her with its turret lights flashing but no audible sirens (BR 6). § 87(2)(b) was confused as the vehicle was also not in an actual lane, so she did not know if she was about to be pulled over or not. Sgt. Ordonez, the operator, and PO Adrian Garcia, the recorder, were in the vehicle in plainclothes. § 87(2)(b) asked Sgt. Ordonez if she was being pulled over and he replied that she was not. § 87(2)(b) then asked why his emergency [turret] lights were on. Sgt. Ordonez did not respond. § 87(2)(b) decided to ask for his name and badge number. Sgt. Ordonez simply stated, “sergeant,” and nothing else before he drove off.

Sgt. Ordonez testified that on November 29, 2023, he was assigned as the Domestic Violence Sergeant at the 44th Precinct stationhouse (BR 7). This was an administrative assignment that operated at the stationhouse. At the time of the incident, Sgt. Ordonez and PO Garcia were on their way back to the stationhouse after returning a radio to One Police Plaza in Manhattan. Both officers

were in plainclothes and did not have their BWC equipped as they were not on enforcement duty. On his way back to the 44th Precinct stationhouse, Sgt. Ordonez noticed § 87(2)(b) on his driver's side as she drove down Delancey Street. Sgt. Ordonez witnessed § 87(2)(b) on her cell phone while she operated her vehicle. He did not pursue this violation as PO Garcia did not witness said violation. As this happened, § 87(2)(b) began to wave down the vehicle. Sgt. Ordonez rolled down the driver's side window to see what she needed. § 87(2)(b) asked the officer why he had his emergency [turret] lights activated to which he responded, "Why are you on your cell phone." Sgt. Ordonez had not realized that his lights were on as they sometimes can be accidentally left on by a previous operator. § 87(2)(b) then asked for his name and badge number which Sgt. Ordonez verbally provided. § 87(2)(b) then drove away. Sgt. Ordonez believed that § 87(2)(b) had recorded their interaction as she had aimed her phone out the window.

PO Garcia provided similar testimony to Sgt. Ordonez with the following exceptions. After seeing § 87(2)(b) on her cell phone, and the officers pulling up their vehicle alongside her vehicle, Sgt. Ordonez told § 87(2)(b) to get off her phone. § 87(2)(b) refused and continued to drive as she recorded the officers. The initial interaction lasted less than a minute. PO Garcia did not recall any further questions or responses from § 87(2)(b) or Sgt. Ordonez. PO Garcia also did not recall if Sgt. Ordonez identified himself by name or shield number at this point in time. At an unknown point, PO Garcia turned around and was able to look out of the rear windshield and see § 87(2)(b) driving with one hand on the steering wheel and the other hand using her cell phone to record.

There is conflicting testimony regarding the conversation between § 87(2)(b) and Sgt. Ordonez. There is no video footage to confirm whether or not Sgt. Ordonez was asked for his name or badge number at this point or if he responded with only "sergeant," rather than his name and shield.

§ 87(2)(g)

it is recommended that **Allegation A and B** be closed as **unable to determine**.

Allegation (C) Abuse of Authority: At Delancey Street and Essex Street in Manhattan, Sergeant Roger Ordonez refused to provide his name to § 87(2)(b).
Allegation (D) Abuse of Authority: At Delancey Street and Essex Street in Manhattan, Sergeant Roger Ordonez refused to provide his shield number to § 87(2)(b).

PO Alfredo Salazar's BWC, beginning at the 2:05 minute mark, shows Sgt. Ordonez and § 87(2)(b) engaged in conversation regarding the traffic stop (BR 4). At the 2:20 mark, Sgt. Ordonez asks § 87(2)(b) for her license and registration. At 2:28, § 87(2)(b) asks for Sgt. Ordonez's name and badge number. Sgt. Ordonez does not answer and proceeds to try and open her driver's side door. Sgt. Ordonez does not provide this information at any point during the footage.

PO Minquin Pan's BWC from the 2:18 mark, captures the same interaction between § 87(2)(b) and Sgt. Ordonez from the passenger side of the vehicle point of view (BR 5).

One of § 87(2)(b) videos is 1 minute and 34 seconds long (BR 2). At the 1:15 mark, Sgt. Ordonez can be heard asking for § 87(2)(b) license, registration, and proof of insurance. § 87(2)(b) chuckles before picking up her cell phone and asking for Sgt. Ordonez's name and badge number. Sgt. Ordonez does not respond before attempting to open the door using the handle.

§ 87(2)(b) testified that after the first interaction with Sgt. Ordonez, she noticed a NYPD vehicle slowing down traffic ahead of her (BR 6). PO Garcia's voice came over the loudspeaker and told § 87(2)(b) to pull over. At this time § 87(2)(b) decided to record the officers. § 87(2)(b) pulled over at the corner of Delancey Street and Essex Street. Sgt. Ordonez and PO Garcia did not approach § 87(2)(b) for about 30 seconds and then a second marked NYPD vehicle, containing two uniformed officers, PO Salazar and PO Pan, arrived. Sgt. Ordonez and PO Salazar approached § 87(2)(b) driver's side window. At this moment, she did not recognize Sgt. Ordonez as being the same officer in the driver's seat that she had spoken with a short time earlier. § 87(2)(b) rolled down her window and asked Sgt. Ordonez why she had been pulled over. Sgt. Ordonez stated that it was due to her vehicle having window tints. § 87(2)(b) tried to ask a few questions regarding the stop but felt that Sgt. Ordonez was escalating the situation. Sgt. Ordonez asked for § 87(2)(b) license and insurance. § 87(2)(b) did not verbally refuse to give him her identification and instead, while still recording, § 87(2)(b) asked for the sergeant's name and badge number. Sgt. Ordonez did not respond to § 87(2)(b) before he reached over and tried to unlock § 87(2)(b) driver's side door.

Sgt. Ordonez testified that after the first interaction with § 87(2)(b) the two officers also noticed § 87(2)(b) had illegal tints and initiated a traffic stop on the corner of Delancey Street and Essex Street (BR 7). Since neither officer had BWC equipped or any physical summonses, Sgt. Ordonez called for another patrol vehicle for assistance. Once the second patrol vehicle arrived, Sgt. Ordonez explained the situation to the two officers, PO Pan, and PO Salazar. The four officers then approached § 87(2)(b) vehicle. Sgt. Ordonez approached the driver's side window and told her she was pulled over for a tint violation. He then asked for her license, registration, and proof of insurance. § 87(2)(b) kept asking questions about her stop, Sgt. Ordonez continued to ask § 87(2)(b) for her information multiple times. Sgt. Ordonez did not recall if she verbally refused to provide her information but she did not comply with his orders. Sgt. Ordonez believed that § 87(2)(b) did not want to give him her information. As Sgt. Ordonez attempted to get her information, § 87(2)(b) asked for his name and badge number. Sgt. Ordonez recalled that he gave his name and shield number to § 87(2)(b) when she asked in the initial interaction before she was officially pulled over. He did not give § 87(2)(b) his name and badge number when she asked during the official traffic stop because he had already given it to her prior to the stop. He was also attempting to give her verbal commands regarding her identification at the time.

PO Garcia testified that after the first interaction with § 87(2)(b) both himself and Sgt. Ordonez noticed that § 87(2)(b) vehicle also had illegal window tints (BR 8). They noticed this because they could not see into her car as they drove by. After approximately one or two blocks, a traffic stop was initiated at the corner of Delancey Street and Essex Street for the tints. PO Garcia did not recall why the cellphone violation was not also a part of this stop. Sgt. Ordonez requested another unit as neither of the two officers were in uniform nor had their BWC equipped due to being on an administrative assignment. The second unit consisted of PO Pan and PO Salazar, who were in uniform. Once the second unit arrived, the four officers approached § 87(2)(b) vehicle. PO Garcia went to the passenger side while Sgt. Ordonez went directly to the driver's side. Once arriving at the slightly open passenger side window, PO Garcia requested that § 87(2)(b) roll down her window further but did not give an exact reason for the command, but rather stated that she "had to." § 87(2)(b) refused to roll down the window and began to speak with the officers on her driver's side.

Uniformed members of service (UMOS) must courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so - Patrol Guide procedure 203-09 (BR 9). A UMOS failing to give their name and shield number to a person requesting is a Schedule B violation - Administrative Guide procedure 318-01 (BR 10).

PO Salazar's and PO Pan's BWC footage confirmed that when § 87(2)(b) asked Sgt. Ordóñez for his name and shield number, he did not provide it at that time. § 87(2)(b) personal video also shows Sgt. Ordóñez not responding when asked for his name and badge number during the second encounter. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation C and D be closed as Unable to Determine.

Allegation (E) Abuse of Authority: At Delancey Street and Essex Street in Manhattan, Sergeant Roger Ordóñez searched the vehicle in which § 87(2)(b) was an occupant.
Allegation (F) Force: At Delancey Street and Essex Street in Manhattan, Sergeant Roger Ordóñez used physical force against § 87(2)(b)

PO Salazar's BWC, starting at the 2:30 minute mark, shows Sgt. Ordóñez attempting to open § 87(2)(b) door using the door handle, but it is locked (BR 4). § 87(2)(b) asks the sergeant why he is trying to get in her vehicle. At 2:40, Sgt. Ordóñez opens the vehicle door and orders § 87(2)(b) to get out of the vehicle. At 2:55, Sgt. Ordóñez leans into the vehicle and unbuckles and removes § 87(2)(b) seatbelt. PO Salazar's BWC, starting at the 2:59 minute mark, shows Sgt. Ordóñez using his hands to guide § 87(2)(b) out of the vehicle with her left arm. The BWC does not show any other force or otherwise physical contact by Sgt. Ordóñez.

PO Pan's BWC, starting at the 2:30 minute mark, shows Sgt. Ordóñez leaning over near § 87(2)(b) window (BR 5). At 2:36, Sgt. Ordóñez opens the vehicle door. At 2:50, § 87(2)(b) looks around in her vehicle for something. Sgt. Ordóñez leans down and unbuckles § 87(2)(b) seatbelt, she asks why he is touching her. She tells him that she will give him her identification.

In § 87(2)(b) second video, starting at the 1:23 minute mark, Sgt. Ordóñez reaches into § 87(2)(b) vehicle through the window (BR 2). He tries to unlock the door by touching the buttons on the door. § 87(2)(b) tells him to get out of her vehicle before trying to roll the window up. Sgt. Ordóñez stops the window using his hands and opens the door by pulling the inside handle.

§ 87(2)(b) testified that, without identifying himself, Sgt. Ordóñez reached for the handle to the driver's side door (BR 6). He tried to open the door, but it was locked. The sergeant then put his hands into § 87(2)(b) driver's side window and tried to unlock the door by using the interior unlock button. § 87(2)(b) told the sergeant to get out of her vehicle and tried to roll the window up. She stopped due to being scared that Sgt. Ordóñez would break the window. § 87(2)(b) tried to tell the sergeant that she would provide her identification but was ignored as the sergeant kept trying to unlock the door. Sgt. Ordóñez eventually opened the door by using the interior vehicle door handle. Sgt. Ordóñez then grabbed and pulled § 87(2)(b) by her arm out of her vehicle. She was then put in handcuffs and arrested. § 87(2)(b) was walked over to a patrol vehicle by one of the other officers.

Sgt. Ordóñez testified that he did reach into § 87(2)(b) vehicle to unlock it in an attempt to get § 87(2)(b) out of the vehicle but that this was done only after he had already told her to step out of the vehicle multiple times (BR 7). § 87(2)(b) did not comply with orders to step out

of the vehicle, so Sgt. Ordonez reached in to unbuckle her seatbelt. Sgt. Ordonez did not recall if § 87(2)(b) stated that she would give him her identification at this point. Sgt. Ordonez testified that he did physically touch § 87(2)(b) but did not recall where or how. He did not grab or pull § 87(2)(b) forcefully and she was able to step out of the vehicle on her own.

PO Garcia testified that he could not see the exact course of actions taken by Sgt. Ordonez as he was on the opposite side of the vehicle and the tinted windows were not rolled down far enough for him to see (BR 8).

During a traffic stop, officers may remove violators to command for investigation if doubt concerning identity exists - Patrol Guide procedure 209-09 (BR 11). Officers must conduct a mandatory license check during traffic violations - Patrol Guide procedure 209-24 (BR 12).

It is undisputed that § 87(2)(b) was pulled over for a traffic violation thus Sgt. Ordonez was able to request her license.

§ 87(2)(g)
It is recommended that **Allegation E** be closed as **Within NYPD Guidelines**.

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances - Patrol Guide procedure 221-01 (BR 13).

§ 87(2)(g)
It is recommended that **Allegation F** is closed as **Within NYPD Guidelines**.

Allegation (G) Abuse of Authority: At Delancey Street and Essex Street in Manhattan, Sergeant Roger Ordonez arrested § 87(2)(b) unlawfully.

PO Salazar's BWC, starting at the 3:00 minute mark, shows § 87(2)(b) being removed from her vehicle by Sgt. Ordonez, who is using her arm to guide her out of the vehicle (BR 4). § 87(2)(b) is overheard asking why Sgt. Ordonez is touching her. Sgt. Ordonez can be heard telling § 87(2)(b) to "get out of the car." At 3:06, Sgt. Ordonez tells § 87(2)(b) to put her hands behind her back. At 3:08, Sgt. Ordonez states, "I asked you how many times for your license and registration, you want to play games, okay." § 87(2)(b) then asks what the crime is, Sgt. Ordonez tells her that they will explain everything at the stationhouse. At 3:18, Sgt. Ordonez directs PO Garcia to put § 87(2)(b) in the car before directing PO Salazar to drive her car back to the 7th Precinct Stationhouse.

PO Pan's BWC, starting at the 2:59 minute mark, matches PO Salazar's BWC with the following exceptions (BR 5). At 3:20, PO Pan walks § 87(2)(b) over to a marked NYPD SUV. As they walk over, a third marked NYPD vehicle turns off of Essex on to Delancey and pulls in the space

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 17).
- Sgt. Ordonez has been a member-of-service for nine years and this is the first CCRB complaint to which Sgt. Ordonez has been a subject (BR 18).

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) filed a notice of claim with the city of New York claiming pain, misery, suffering, loss of enjoyment of life, for loss of ability to pursue happiness, for severe mental and emotional distress, anxiety, humiliation, and other non-economic and economic damages and seeking \$400,000 as redress (BR 19). § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 6

Investigator:	<u>Taylor Jackson</u>	<u>Investigator Jackson</u>	<u>February 20, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Peña</u>	<u>IM Jessica Peña</u>	<u>2/21/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date